



St. Vrain Valley
Community Watchdogs
neighbors united for clean air

P O Box 82/Hygiene/CO 80533-0082
online at www.stvrainwatchdogs.org

**Cemex-Lyons tire burning plan requires a leap of faith.
Are the risks really worth it?**

Longmont City Council
Civic Center
350 Kimbark St.
Longmont, Colorado 80501

Dear Council Members,

RECEIVED

November 1, 2002

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Division of Minerals and Geology

M-1977-208

General Docs.

Background:

For the last five years, the Watchdogs have been working in concert with local and State agencies in an effort to seek a solution to fugitive dust problems at Cemex-Lyons (formerly Southdown). A priority of our efforts has been for Cemex-Lyons to adopt and maintain effective housekeeping practices. This is crucial to prevent episodes of fugitive Portland cement dust from blowing into the surrounding communities. In the years previous to our campaign, cement dust was saturating the St. Vrain Valley. Residents here had not been able to open their windows for nine years. Regardless, the white dust was still everywhere inside their homes. (See attached photo documentary.)

Although improvements have been made, the company still has episodic cement dust storms due to failures in housekeeping and improper handling on materials. Enclosed are copies of two complaint investigation inspection reports performed by the Boulder County Health Department (09/30/02) and the Colorado Air Pollution Control Division (10/01/02). Cemex-Lyons' dust control plan is still far from adequate. The company's dust continues to pose a threat to the safety and health of people in the adjoining communities.

Trust:

Still unable to contain its toxic dust, Cemex-Lyons is now launching a new project to increase corporate profits by burning 700,000 to 1,000,000 waste tires as fuel in the cement kiln. There are many resident in Lyons, Hygiene, and Longmont who are opposed to this potentially hazardous practice of using tires as fuel. Cemex-Lyons, however, is scheduling a test burn in November.

The EPA's position is that burning tires in a cement kiln may be an acceptable practice provided that the kiln is appropriately designed, and the process is well-run and well-maintained. However, the observations made by the County and State regulatory

inspectors in their investigation reports have lead us to seriously question that Cemex-Lyons may not be able to meet the stringent standards of operation that the EPA requires. This has raised a trust issue within the community. The Watchdogs are weary and wary of corporate rhetoric; mistrusting of Cemex-Lyons' environmental ethic; and suspicious of what might happen after the "test burn" when no regulators are present.

Problems with regulating toxic substances that can't be seen:

Previous to citizen involvement in the Portland cement dust issue, the regulatory agencies were unaware of the dire conditions in the St. Vrain Valley because the agencies are located in Boulder and Denver. Since the residents here have been able to see these dust clouds, we have been able to report these incidents to the agencies. In a tire burning situation; however, any malfunctions resulting in chemically unknown emissions may presumably go unseen, and air pollution from these malfunctions could disperse for many miles.

The potential health hazards of tire burning:

Tires are not benign substances to burn. On June 17, 2002 the Watchdogs asked the Boulder County Health Department to provide educational resources and appropriate assessments regarding tire burning at Cemex-Lyons. This research is in progress. (Letter enclosed) The Watchdogs are attempting to research what toxins could be released into the atmosphere when there is an operating malfunction in the kiln or even a worse case scenario at Cemex Lyons.

Questions persist. Will Cemex-Lyons be able to consistently meet the well-run, well-maintained standards of performance required by the EPA? Who is going to know if malfunctions in combustion occur? Who will tell the neighbors?

According to John Ray, President of the Montana Environmental Information Center, "When tires are burned in a cement kiln new and deadly compounds are produced. The most deadly are dioxins." "Exposure to dioxins," says the EPA, "even at minute levels, poses cancer risks and health concerns including possible damage to the immune and reproductive systems."

Are the risks worth it? Is it worth giving this corporation carte blanche to launch burning tires strictly for its own personal profit and risk endangering our communities and residents?

Economic and environmental concerns:

Residents have expressed apprehensions in regard to the economic and environmental impact that tire burning could have. Depressed real estate values, increased truck traffic on Ute Highway, contaminated agricultural products, exposure to toxins through the food chain, the contamination of the St. Vrain River, and the potential impact to fish, game, and bird populations are issues of concern.

Bottom line:

Mr. Oatley, editor of "The Old Lyons Recorder," aptly focused on the essence of this controversy in his editorial opinion.

The idea that we should err on the side of caution where human health is concerned... seems to be the best guiding principle at work in this controversy. CEMEX's bottom line is not nearly so significant of a concern.

The Watchdogs respectfully request that the Longmont City Council review the enclosed documents, consider the serious consequences that tire burning may pose to the neighboring communities, and lend your advocacy that this project should be opposed.

We want to thank the Council for its consideration of the issues expressed in this letter.

Sincerely,



Richard Cargill
Executive Director

St. Vrain Valley Community Watchdogs

Additional information:

Websites: stvrainwatchdogs.org
globalpeacefoundation.com (environmental justice project)
notoxicburning.org
svtc.org
meic.org

Write to: Center for Health, Environment & Justice, PO Box 6806
Falls Church, Virginia 22040-6806

Enclosures:

Inspection - Boulder County Health Department
Inspection - CDPHE, Air Pollution Control Division
Letter - Boulder County Board of Health
Letter - Division of Minerals and Geology
Editorial Opinion
News story

Cc: Boulder County Commissioners
Ms. Beth Versaw, President, Boulder County Board of Health

Ms. Margie Perkins, Director, Air Pollution Control Division
Mr. Carl Mount, Senior Environmental Protection Specialist, DMG
Mr. Richard Long, Director, Air and Radiation Program, USEPA, Region 8
Mr. Kerrigan Clough, EPA, Region 8
Mr. Mike Owens, EPA, Region 8
Ms. Susan de Castro McCann, editor, "Redstone Review"
Mr. Mike Oatley, editor, "The Old Lyons Recorder"
Mr. Gilberto Perez, Cemex, President of U.S. Operations
EPA - Washington, D.C., Docket RCRA - 1999-0011



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